

# Track 1 — Chapter Build Pass

MPEP §§2110s · Novelty and Prior Art Under 35 U.S.C. §102 (AIA & Pre-AIA)

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Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

## Overview: Two Regimes, One Exam

Because effective filing date determines which law applies, you need fluency in both the AIA (first-inventor-to-file, applications with an effective filing date on/after March 16, 2013) and pre-AIA (first-to-invent) versions of §102. The exam can test either — always check which regime a fact pattern signals before applying a rule.

### Rule 1: Anticipation: The "Every Element" Rule (§2131)

#### PLAIN ENGLISH

A claim is **anticipated** under §102 only if a single prior art reference discloses every element of the claim, arranged as claimed. You cannot combine multiple references to anticipate — combining references is an obviousness (§103) analysis, not anticipation. A single reference can anticipate through **inherency** even if it doesn't explicitly state a claim element, if that element is necessarily present.

#### EXAMPLE

A prior art reference discloses a beverage container with all claimed features except it doesn't explicitly say the container is "leakproof." If the disclosed structure necessarily prevents leaking whenever made as described, that missing limitation is inherently present, and the reference still anticipates.

#### QUIZ

**An examiner rejects a claim as anticipated by combining Reference A (showing elements 1-3) with Reference B (showing element 4). Is this a proper anticipation rejection?**

- (A) Yes, combining two references for anticipation is standard
- (B) No — anticipation requires all elements in a single reference; this is really an obviousness analysis
- (C) Yes, if both references are analogous art
- (D) No, because Reference B is not prior art

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### Rule 2: AIA §102(a)(1) — Prior Art Before the Effective Filing Date

#### PLAIN ENGLISH

Under the AIA (first-inventor-to-file, applies to applications with an effective filing date on/after March 16, 2013), §102(a)(1) prior art includes anything **patented, described in a printed publication, in public use, on sale, or otherwise available to the public** before the claimed invention's effective filing date — regardless of who invented it first. There's no more "first to invent" defense for this category, subject to the §102(b)(1) grace-period exceptions.

#### EXAMPLE

If a competitor publishes an article describing the same invention 8 months before the inventor files, that publication is AIA §102(a)(1) prior art against the inventor's claim, even if the inventor can prove they invented it earlier — unless a grace-period exception applies.

## QUIZ

Under AIA §102(a)(1), the critical date for prior art is generally:

- (A) The date of invention
- (B) The effective filing date of the claimed invention
- (C) The date the patent issues
- (D) The date of first commercial sale by the inventor

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## Rule 3: AIA §102(b)(1) — The One-Year Grace Period Exception

### PLAIN ENGLISH

A disclosure made **by the inventor (or someone who obtained the subject matter from the inventor)** within one year before the effective filing date is NOT prior art under §102(a)(1) — this is the AIA's grace period. It only protects disclosures traceable back to the inventor; a third party's independent disclosure of the same subject matter during that year still counts as prior art.

### EXAMPLE

An inventor publishes their own results in a journal in March 2025, then files a patent application in December 2025 (within one year). That March publication is excused under §102(b)(1) grace period and is not prior art against the inventor's own application.

## QUIZ

**An inventor discloses their invention in June. A completely unrelated third party independently publishes the same invention in September (before the inventor files in December). Is the third party's September publication prior art?**

- (A) No — it's within the grace period
- (B) Yes — the grace period only protects disclosures traceable to the inventor, not independent third-party disclosures
- (C) No, because the inventor disclosed first
- (D) Yes, but only if filed as a joint application

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## Rule 4: AIA §102(a)(2) — Prior-Filed, Later-Published Applications

### PLAIN ENGLISH

§102(a)(2) treats another's U.S. patent, U.S. application publication, or PCT application (designating the U.S.) as prior art as of its **effective filing date**, even if it wasn't published until after the claimed invention's filing date — as long as it eventually publishes or issues. This is the AIA's version of "secret prior art"/§102(e)-type art, and it has its own exceptions under §102(b)(2), including a common-ownership/joint-research-agreement exception.

### EXAMPLE

Application X is filed January 2024 but not published until August 2025. Application Y is filed March 2024, disclosing the same subject matter. Application X counts as §102(a)(2) prior art against Application Y as of X's January 2024 filing date, even though X wasn't public yet when Y was filed.

## QUIZ

What makes a reference's effective date for §102(a)(2) purposes?

- (A) Its publication or issue date only
  - (B) Its effective filing date, even if publication/issuance comes later
  - (C) The date it's cited by an examiner
  - (D) The date the applicant becomes aware of it
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## Rule 5: Pre-AIA §102 Overview (Applications Filed Before March 16, 2013)

### PLAIN ENGLISH

For applications with an effective filing date **before March 16, 2013**, pre-AIA §102 still governs, and it's meaningfully different: pre-AIA was **first-to-invent**, so §102(a) prior art is measured from the invention date, §102(b) creates a strict **one-year statutory bar** (public use/on-sale bar, triggered by ANYONE's disclosure, including the inventor's own, with no grace-period exception like AIA's), §102(e) covers earlier-filed U.S. applications by another, and §102(g) covers priority disputes between rival inventors (interference practice).

### EXAMPLE

Under pre-AIA law, if the inventor themselves publicly used their own invention 14 months before filing, that's a public-use bar under pre-AIA §102(b) — there's no grace period exception even for the inventor's own conduct, unlike the AIA's more forgiving one-year grace period under §102(b)(1).

## QUIZ

Under pre-AIA §102(b), an inventor's own public use of the invention more than one year before filing is:

- (A) Excused because it's the inventor's own use
  - (B) An absolute statutory bar with no grace-period exception for the inventor
  - (C) Only a bar if a competitor also used it
  - (D) Governed by the same grace period as AIA §102(b)(1)
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## Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

**1. A single prior art reference discloses elements A, B, and C of a claim but is silent on element D. Expert testimony shows D is necessarily present whenever the reference's structure is made as disclosed. Is the claim anticipated?**

- (A) No, because D isn't explicitly disclosed
- (B) Yes, under the doctrine of inherency
- (C) No, inherency doesn't apply to anticipation
- (D) Only if D is also disclosed in a second reference

**2. An application has an effective filing date of June 1, 2024 (AIA governs). A relevant journal article was published by an unrelated third party on August 1, 2023. Is this prior art under §102(a)(1)?**

- (A) No, less than one year before filing
- (B) Yes — published before the effective filing date, by an unrelated party
- (C) No, only U.S. publications count
- (D) Yes, but only against continuation applications

**3. Which scenario correctly invokes the AIA §102(b)(1) grace period?**

- (A) A stranger publishes the invention 3 months before the inventor files
- (B) The inventor themselves publishes 6 months before filing
- (C) The inventor's employer, having independently invented the same thing, publishes 2 months before filing
- (D) A competitor's patent issues 2 months before filing

**4. For a pre-AIA application, two inventors both claim the same invention. Which pre-AIA provision resolves who has priority?**

- (A) §102(b)
- (B) §102(e)
- (C) §102(g) (interference practice)
- (D) §102(a)(2)

**5. A prior-filed but not-yet-published U.S. application (filed before the claim at issue) later publishes. Under AIA, its prior art date is:**

- (A) Its publication date
- (B) Its effective filing date
- (C) The date the examiner discovers it
- (D) It cannot be used as prior art until issued

**6. True or False: Under the AIA, combining two references to supply all claim elements can constitute an anticipation rejection if both references are prior art.**

- (A) True
- (B) False

## Memorize This: Key Tests & Terms

- Anticipation = **one** reference, **every** element, as arranged in the claim. No combining references.
- **Inherency** can supply an unstated element if it's necessarily present.
- AIA critical date = **effective filing date** (first-inventor-to-file), not invention date.
- AIA §102(b)(1) grace period only protects disclosures **traceable to the inventor** — not independent third-party disclosures.
- AIA §102(a)(2): prior-filed applications count as prior art from their **effective filing date**, even if published later.
- Pre-AIA (filed before March 16, 2013) = first-to-invent; §102(b) is a strict **one-year bar with no grace period**, even for the inventor's own conduct.
- Pre-AIA §102(g) / interference  $\approx$  AIA derivation proceedings (Chapter 2300) for priority disputes.

## Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

### Rule-Card Quizzes

#### Rule 1: Anticipation: The "Every Element" Rule (§2131)

An examiner rejects a claim as anticipated by combining Reference A (showing elements 1-3) with Reference B (showing element 4). Is this a proper anticipation rejection?

Answer: B

Anticipation is strictly a single-reference doctrine. Combining references belongs to §103 obviousness — a very common examiner and exam-question trap.

#### Rule 2: AIA §102(a)(1) — Prior Art Before the Effective Filing Date

Under AIA §102(a)(1), the critical date for prior art is generally:

Answer: B

AIA is first-inventor-to-file — the effective filing date, not the invention date, is the reference point for §102(a)(1) prior art (subject to the one-year grace period discussed in the next rule).

#### Rule 3: AIA §102(b)(1) — The One-Year Grace Period Exception

An inventor discloses their invention in June. A completely unrelated third party independently publishes the same invention in September (before the inventor files in December). Is the third party's September publication prior art?

Answer: B

A classic AIA trap: the grace period doesn't create blanket immunity for the whole year — it only shields disclosures originating from the inventor. An independent third-party disclosure remains prior art.

#### Rule 4: AIA §102(a)(2) — Prior-Filed, Later-Published Applications

What makes a reference's effective date for §102(a)(2) purposes?

Answer: B

§102(a)(2) reaches back to the effective filing date of the other application — this "provisional prior art" status is a frequently tested AIA nuance.

#### Rule 5: Pre-AIA §102 Overview (Applications Filed Before March 16, 2013)

Under pre-AIA §102(b), an inventor's own public use of the invention more than one year before filing is:

Answer: B

Pre-AIA §102(b) is a strict one-year statutory bar that applies even to the inventor's own conduct — a harsher rule than the AIA's inventor-friendly grace period. Don't import AIA grace-period logic into a pre-AIA fact pattern.

### Chapter Close-Out Quiz

**1. (B)**

Inherency lets a single reference anticipate even for limitations not expressly stated, so long as they're necessarily present — this applies under both pre-AIA and AIA anticipation analysis.

**2. (B)**

The article predates the effective filing date and comes from an unrelated third party, so it's squarely §102(a)(1) prior art with no grace-period rescue available.

**3. (B)**

Only disclosures traceable to the inventor (or someone who got the info from the inventor) qualify for the grace period. A stranger's independent disclosure, or even the inventor's employer's independent invention, does not qualify — this fact pattern is designed to test that limit.

**4. (C)**

§102(g) (largely preserved through transitional/derivation-related provisions) governs priority contests between rival inventors under the old first-to-invent regime; the AIA replaced this with derivation proceedings for AIA-governed applications.

**5. (B)**

AIA §102(a)(2) reaches back to the other application's effective filing date, not its publication date — the 'secret prior art' concept.

**6. (B) False**

Anticipation always requires all elements in a single reference. Combining references, even both prior art, is a §103 obviousness question, not anticipation.